

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

**DOCKET NO. 24-01**

Served: February 18, 2025

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**ORDER OF:** Richard AMBROW, *Administrative Law Judge*.

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**ORDER FOLLOWING STATUS HEARING**

On February 18, 2025, I held a status hearing regarding Respondent's Motion for Reconsideration. In its Motion for Reconsideration, which was filed February 13, 2025, Respondent asks that I reconsider my February 10, 2025, Order Requiring Respondent to Perform Searches Through November 28, 2022 (the "February 10 Order"). As discussed below, the Motion for Reconsideration is **DENIED**.

The February 10 Order sets forth the relevant procedural history. In brief, though, on October 16, 2024, Complainant filed its Second Motion to Compel, which I granted in part on January 24, 2025. I required Complainant to provide me with an affidavit of a knowledgeable witness describing electronic searches Respondent performed. On February 7, 2025, Respondent provided two declarations showing, among other things, that the date range Respondent used for its electronic searches went through December 31, 2021, even though Complainant's claims run through November 28, 2022. On February 10, 2025, I issued the February 10 Order, which provides:

It is **HEREBY ORDERED** that Respondent is to extend the searches it described in its declarations filed February 7, 2025, through November 28, 2022.  
It is

**FURTHER ORDERED** that Respondent is to apply the search terms described in its declarations filed February 7, 2025, to custodians Thomas Takase, Phil Taylor, and Chris Smith from January 1, 2020, through November 28, 2022.  
It is

**FURTHER ORDERED** that no later than **March 12, 2025**, Respondent is to file an affidavit of a knowledgeable witness describing with particularity the searches Respondent performed, including clarifying a) whether "Visual Comfort" was previously used as a search term (and if not, Respondent is to

repeat its prior searches using “Visual Comfort,” as well as add “Visual Comfort” to its extended searches), b) the date range and search terms used to search perdiem@cosco-usa.com (to the extent Respondent did not utilize the agreed-upon search terms for the period January 1, 2020, through November 28, 2022, Respondent is to do so). It is

**FURTHER ORDERED** that no later than **March 12, 2025**, Respondent is to produce to Complainant any additional documents located. It is

**FURTHER ORDERED** that no later than **March 12, 2025**, Respondent is to file a description of any additional documents identified pursuant to this Order (*e.g.*, the number of documents, the Bates range, to/from, general topic of documents, dates of documents).

On February 13, 2025, Respondent filed its Motion for Reconsideration. In it, Respondent argues that Complainant agreed to a date range only extending through December 31, 2021, and, in any event, it would be onerous and time consuming for Respondent to comply with the February 10 Order.

Respondent’s Motion for Reconsideration is **DENIED**. As stated during the February 18, 2025, status conference, given that Complainant’s claims go through November 28, 2022, there would be an incomplete factual record if Respondent did not extend its searches through November 28, 2022.

There were other issues briefly addressed during the February 18, 2025, status conference including the following:

- Respondent’s counsel asked for clarification regarding the precise search terms to use because there were allegedly multiple versions of VCC000005.
- Counsel for Complainant asked about clarification regarding custodians.
- I instructed the parties that they will have an opportunity to file supplemental briefs on the merits.

It is sufficient to respond to the first two points raised (clarification regarding precise search terms and custodians) by stating that Respondent is to comply with the requirements of the February 10 Order.<sup>1</sup> Regarding the third point, *i.e.*, the scope of the supplemental briefs, it is sufficient to note that the parties will have an opportunity to submit new briefs, along with additional exhibits (not necessarily limited to the forthcoming supplemental production). The parties do not need to re-argue points already raised.

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<sup>1</sup> I clarified during the February 18, 2025, status hearing that it is unnecessary to search MBL or container numbers for shipments to Skokie, Illinois, as Complainant removed those claims.

Accordingly, it is **HEREBY ORDERED** that Respondent's Motion for Reconsideration is **DENIED**. It is

**FURTHER ORDERED** that Respondent is to comply with the February 10 Order, with the clarification that it need not search MBL or container numbers for shipments to Skokie, Illinois. It is

**FURTHER ORDERED** that Complainant is to file a Supplemental Brief, along with a supplemental proposed findings of fact and appendix, no later than March 26, 2025. It is

**FURTHER ORDERED** that Respondent is to file a Supplemental Brief, along with a supplemental proposed findings of fact and appendix, no later than April 9, 2025.

Richard C.  
Ambrow Jr -S

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Richard C. Ambrow Jr -S  
Date: 2025.02.18  
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Richard Ambrow  
Administrative Law Judge